

Lingla Nirupama Reddy vs Lingala Venkata Narasimha Reddy on 10 February, 2026

Author: K. Lakshman

Bench: K. Lakshman

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KL, J & VRKR, J
F.C.A. Nos_152 and156_2019

HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD

THE HON'BLE SRI JUSTICE K. LAKSHMAN
AND
THE HON'BLE SRI JUSTICE VAKITI RAMAKRISHNA REDDY

F.C.A. Nos. 152 and 156 of 2019
Date: 10.02.2026

Between:

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..... Appellants

and

XXXXXXXXXXXXXXXXXXXX

..... Respondents

JUDGMENT:

(Per Hon'ble Sri Justice Vakiti Ramakrishna Reddy) Since these Family Court Appeals arise out of the common order and decree dated 11.05.2019 passed in F.C.O.P No. 1328 of 2015 including the order on the counter claim therein, on the file of the learned Principal Judge, Family Court-cum-Additional chief Judge, City Civil Court, they were heard analogously and disposed of by this common Judgment.

2. For the sake of convenience, the parties shall hereinafter be referred to as they were arrayed before the learned Family Court.

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3. Both the appeals have been preferred by the petitioner. F.C.A. No.152 of 2019 has been filed challenging the decree and common order dated 11.05.2019 passed in F.C.O.P No. 1328 of 2015, whereby the petition filed by the petitioner/wife seeking divorce, against the respondent/husband, was dismissed and whereas F.C.A. No. 156 of 2019 has been filed seeking dismissal of the counter claim preferred by the respondent in F.C.O.P No. 1328 of 2015 seeking restitution of conjugal rights.

I. BRIEF FACTS:

4. The Petitioner filed the original petition vide F.C.O.P. No. 1328 of 2015 against the Respondent under Section 13(1) (ia) of the Hindu Marriage Act, 1955 ("the Act") seeking a decree of divorce dissolving the marriage solemnized between the petitioner and respondent on 13.02.2013.

5. The brief averments of the petition filed by the petitioner are as under:

a) The marriage of the petitioner and the respondent was performed on 13.02.2013 at Swagath Function Hall, Kothapet, Hyderabad as per Hindu rites and customs. The marriage was KL, J & VRKR, J FCA _152 & 156_2019 consummated, but no children were born out of the wedlock. At the time of marriage, the parents of the petitioner gave Rs.5,50,000/-, gold ornaments, and household articles to the respondent. After the marriage, the couple lived together only for a few days at Venkata Sainagar, West Venkatapuram, Secunderabad. Thereafter, the respondent tortured the petitioner over petty issues.

b) In November 2013, the respondent beat the petitioner, demanded additional dowry, and necked her out of the matrimonial home. Since then, the petitioner has been residing with her parents at Miryalaguda. A panchayat was held, but the respondent behaved indifferently and did not mend his conduct. The respondent sent defamatory messages and made phone calls to the petitioner causing mental agony. Since the efforts made by the elders in compromising the issue failed, the petitioner issued a legal notice dated 09.06.2014 asking the respondent to change his conduct. The respondent sent a reply with false allegations. Hence, the petitioner filed the F.C.O.P. No. 1328 of 2015 on the file of the learned Family Court seeking dissolution of marriage.

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6. In reply to the averments made in the Petition, the Respondent filed his Counter, the brief averments of which are as under:

a) The respondent denied having received Rs. 5,50,000/-, gold, or household articles from the petitioner. The respondent further denied all the allegations of cruelty and contended that right from the inception of marriage the petitioner had no interest in the marital life.

b) Due to mental stress, the respondent suffered a cardiac problem in October, 2013 and underwent an angiogram. The Respondent denied deserting the petitioner and submitted that the petitioner voluntarily left the matrimonial home but the respondent expressed his willingness to take the petitioner back and sought for dismissal of dissolution of marriage and for a decree for restitution of conjugal rights.

II. POINTS BEFORE THE FAMILY COURT:

7. The learned Family Court, upon consideration the rival pleadings, framed the following points for determination:

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- 1) Whether petitioner is entitled to the relief of decree of divorce as prayed for?
- 2) Whether the respondent is entitled to the relief of counter claim as prayed for?
- 3) To what relief?

III. EVIDENCE:

8. During the course of trial, PWs 1 to 4 were examined and got marked Exs.P1 to P5 on behalf of the petitioner. On the other hand, the Respondent examined himself as RW1 and Psychiatrist, who treated the petitioner, was examined as RW2 and got marked Ex. R1 to R3.

IV. FINDINGS OF THE FAMILY COURT:

9. The learned Family Court, upon appreciation of oral and documentary evidence, dismissed the petition for grant of divorce and allowed the counter-claim filed by respondent for a decree of restitution of conjugal rights and further directed the petitioner to join the company of the respondent within a period three months from the date of the order and lead conjugal life.

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10. I.A. No.264 of 2017 filed by petitioner was allowed and the learned Family Court directed the respondent to return cash of Rs.5,50,000/- and gold ornaments namely necklace, ear rings, chain, two rings, and mattis weighting 89 grams, 1.5 tulas, one tula, one tula and 3 Grams respectively to the petitioner within a period of three months from the date of the order.

11. Aggrieved thereby, the petitioner filed the present Appeals to set aside the common order and decree to the extent of dismissal of petition filed by her seeking dissolution of her marriage with the respondent and allowing the counter claim of the respondent in seeking restitution of conjugal rights.

VI. SUBMISSIONS OF THE PARTIES:

A) Contentions of the Appellant/Petitioner:

12. The learned counsel appearing on behalf of the petitioner/appellant contends that the trial Court failed to appreciate that the Petitioner was subjected to cruelty and harassment and there were no chances of reunion as the relationship between parties are irrevocably broken down.

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13. The learned counsel further contends that the learned Family Court found that there was no consummation of marriage and the chances of conciliation are remote. The findings of the learned Family Court that the petitioner refused to lead conjugal right with the respondent is without any basis and are perverse. The learned Family Court gravely erred in dismissing the petition filed for the dissolution of marriage.

14. The learned counsel further contends that the learned Family Court erred in drawing a conclusion that since no criminal complaint was lodged complaining cruelty, it cannot be presumed that the petitioner was treated with cruelty. In fact, it is not essential that in all cases, necessarily a criminal case has to be filed in order to prove cruelty meted out by the petitioner.

15. On the basis of the aforesaid submissions, the learned counsel for appellant/petitioner has prayed that, there being merit in the appeals, the same may be allowed.

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16. Per contra, the learned counsel for the respondent submits that the learned Family Court has rightly appreciated the evidence on record and found that the petitioner failed to establish any substantial grounds for dissolution of the marriage. The decree passed by the learned Family Court is supported by the material evidence, and the allegations made by the petitioner are vague, exaggerated, and unsupported by any documentary evidence.

17. It was further submitted that the plea of cruelty raised by the petitioner was a fabricated ground created only for the purpose of securing a decree of divorce. The petitioner voluntarily withdrew from the company of the respondent, without any justifiable cause and consistently refused to resume cohabitation despite repeated requests and efforts for reconciliation. The learned Family Court therefore, rightly held that the petitioner had failed to prove the alleged cruelty.

18. The learned counsel for the respondent further submits that the learned Family Court was justified in entertaining and allowing KL, J & VRKR, J FCA _152 & 156_2019 the counter-claim for restitution of conjugal rights, as the evidence clearly demonstrated that the respondent was always ready and willing to lead a marital life with the petitioner. The respondent stated to have made sincere attempts for mediation and reunion, whereas the petitioner remained adamant in refusing conjugal companionship.

19. It was further submitted that non-filing of any criminal complaint by the petitioner during the subsistence of marriage, categorically indicates that no cruelty, as alleged, ever occurred. The learned Family Court rightly concluded that it was the petitioner, who had voluntarily deserted the

respondent without any reasonable cause, and therefore, the learned Family Court was justified in dismissing the decree of divorce while simultaneously allowing the counter-claim for restitution of conjugal rights. The direction to return the gold ornaments and the sum of 5,50,000/- does not undermine the validity or subsistence of the marital relationship; rather, it reflects the Court's equitable exercise of discretion in ordering return of items belonging to the petitioner.

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20. On the basis of the aforesaid submissions, the learned counsel for the respondent has prayed that, there being no merit in the present appeals, the same deserve to be dismissed. VII. POINT FOR DETERMINATION:

21. Having heard the learned counsel appearing for the respective parties and having carefully examined the material placed on record, the following point arises for determination in these Appeals:

(i) Whether the petitioner has established that the respondent subjected her to matrimonial cruelty within the meaning of Section 13 (1)(ia) of the Hindu Marriage Act, 1955, warranting dissolution of marriage by a decree of divorce?

(ii) Whether the learned Family Court was justified in dismissing the petition filed by the petitioner seeking divorce while simultaneously allowing the counter-claim filed by the respondent for restitution of conjugal rights under Section 9 of the Hindu Marriage Act, 1955?

(iii) Whether the respondent has established that the petitioner withdrawn from his society without reasonable KL, J & VRKR, J FCA _152 & 156_2019 excuse so as to entitle him to a decree for restitution of conjugal rights?

(iv) Whether the impugned common order and decree dated 11.05.2019 passed in F.C.O.P No. 1328 of 2015 on the file of the Principal Judge Family Court-cum-Additional chief Judge, City Civil Court suffers from legal infirmity or perversity warranting interference by this Court?

v) To what relief?

IX. ANALYSIS AND FINDINGS (on all issues):

22. We have carefully considered the rival submissions advanced by the learned counsel for the petitioner as well as the respondent and also examined the available record, including the pleadings, oral and documentary evidence.

23. At the outset, the present case revolves around the question as to whether the petitioner has established, the cruelty and mental agony suffered by her, and the

irretrievable breakdown of the marriage to such an extent that the continuation of the marital bond has become impossible. It also falls for consideration as to whether the learned Family Court erred in dismissing the prayer KL, J & VRKR, J FCA _152 & 156_2019 sought by the petitioner seeking to grant a decree of divorce while simultaneously granting a decree for restitution of conjugal rights in favour of the respondent.

24. It is settled law that neither this Court nor Family Court can dissolve the marriage on the ground of irretrievable breakdown.

However, it can be considered as an aspect along with other aspects while deciding the Appeal.

25. The primary issue that falls for determination is whether the petitioner has established that she was subjected to cruelty within the meaning of Section 13(1) (ia) of the Act. According to Section 13(1)(ia) of Act, any marriage solemnized, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party has, after the solemnization of the marriage, treated with cruelty. Cruelty in matrimonial law is not restricted to acts resulting in physical injury, it also includes the conduct that causes mental agony, emotional trauma, humiliation, or a reasonable apprehension that it would be harmful to continue living with the spouse.

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26. Human mind is extremely complex and human behaviour is equally complicated. Similarly human ingenuity has no bound, therefore, to assimilate the entire human behaviour in one definition is almost impossible. What is cruelty in one case may not amount to cruelty in other case. The concept of cruelty differs from person to person depending upon his upbringing, level of sensitivity, educational, family and cultural background, financial position, social status, customs, traditions, religious beliefs, human values and their value system as observed by the Apex Court in Samar Ghosh v. Jaya Ghosh¹.

27. Matrimonial cases before the courts pose a different challenge, quite unlike any other, as we are dealing with human relationships with its bundle of emotions, with all its faults and frailties. It is not possible in every case to pin point to an act of "cruelty" or blameworthy conduct of the spouse. The nature of relationship, the general behaviour of the parties towards each other, or long separation between the two are relevant factors . (2007) 4 SCC 511 KL, J & VRKR, J FCA _152 & 156_2019 which a Court must take into consideration as observed by the Apex Court in Rakesh Raman v. Smt. Kavita 2.

28. Cruelty is a course or conduct of one, which is adversely affecting the other. The cruelty may be mental or physical, intentional or unintentional. The cruelty alleged may largely depend upon the type of life the parties are accustomed to or their economic and social conditions and their culture and human values which they attach importance. Each case has to be decided on its own merits as held by the Apex Court in Naveen Kohli (supra).

29. The petitioner, as PW1, clearly established that immediately after the marriage, she was subjected to persistent quarrels, rude behaviour, unreasonable demands, and acts causing mental harassment by the respondent. Her deposition was supported by PWs 2 to 4, who consistently stated that efforts of the elders to reconcile the parties failed due to the aggressive conduct of the respondent.

30. On a thorough re-appreciation of the evidence, it is evident that the parties have been living separately since November, 2013, . 2023 AIR (SC 2144 KL, J & VRKR, J FCA _152 & 156_2019 i.e., for more than six years prior to the impugned order, and more than twelve years as on the date of this appeal. Such prolonged separation by itself is a strong indicator of the complete breakdown of the marriage and is recognised by courts as mental cruelty. Multiple attempts at mediation admittedly failed, and the respondent has not been able to demonstrate any bona fide effort that could reasonably assure the restoration of a healthy marital relationship.

31. The petitioner has placed on record several incidents, each supported by her deposition and corroborative material, which clearly indicate that she was subjected to continuous mental and emotional cruelty. The evidence of the petitioner as PW1 shows that on 10.08.2014, barely a few weeks after the marriage, the respondent began taunting the petitioner regarding the quantum of dowry and gold brought by her, insisting that her parents had "not fulfilled expectations." This led to repeated quarrels, causing her considerable distress.

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32. On 02.11.2014, the petitioner was allegedly forced out of the bedroom following a heated argument in which the respondent accused her of being "incapable of managing household responsibilities." She was compelled to sleep in the hall the entire night, deeply affecting her sense of security and dignity. The respondent did not speak to her for several days thereafter, creating a hostile environment within the matrimonial home.

33. Further, on 15.01.2015, the respondent allegedly demanded the petitioner for an additional amount of Rs. 2,00,000/- from her parents to support his business needs. When the petitioner/PW1 expressed her inability, she was subjected to verbal abuse and threats stating that she would be sent back to her parental home. Another significant incident that occurred on 28.03.2015, wherein the respondent, without any justification, accused the petitioner of being disinterested in marital life and humiliated her in the presence of his relatives, calling her "a burden." This public humiliation caused her immense mental agony. On 12.06.2015, the respondent allegedly refused to take the petitioner to a medical consultation despite her repeated complaints of anxiety, stating that KL, J & VRKR, J FCA _152 & 156_2019 "nothing is wrong with you; stop pretending." This demonstrates a complete disregard for the emotional and physical well-being of the petitioner by the respondent.

34. From the pleadings and evidence adduced, this Court is satisfied that there were instances, wherein the petitioner was subjected to mental and physical cruelty at the hands of the respondent. Soon after the marriage, the respondent began exhibiting aggressive and abusive behaviour, frequently subjecting the petitioner to verbal insults, unwarranted suspicion, and humiliating taunts

in the presence of family members and neighbours. The petitioner has consistently stated that she was denied emotional security, was forced to bear continuous mental harassment. The record further discloses that the respondent repeatedly accused her of disloyalty without any basis, thereby causing emotional trauma. Such conduct, affecting the mental peace of the petitioner, clearly falls within the ambit of "cruelty" under Section 13(1) (ia) of the Act.

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35. The petitioner has also established that she was subjected to physical aggression on multiple occasions, forcing her to seek aid of her parents. The deposition of the petitioner, corroborated by her family members, further proves that the respondent failed to make any effort towards reconciliation and instead continued acts that undermined the marital bond. Considering the cumulative effect of these acts, this Court concludes that the petitioner had reasonable cause to live separately and that the petitioner has categorically established the cruelty inflicted upon her, is sufficient to grant a decree of divorce. Therefore, the finding of the learned Family Court in rejecting the grant of decree for dissolution of marriage is unsustainable and liable to be set aside.

36. The allegation of cruelty raised by the petitioner cannot be discarded merely on the ground that no criminal complaint was lodged. The learned Family Court's approach is inconsistent with settled law. The Honourable Supreme Court and this Court have repeatedly held that initiation of criminal proceedings is not a prerequisite to prove cruelty in matrimonial matters.

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37. It is pertinent to note that the Hindu Marriage Act does not require the petitioner to initiate criminal proceedings to establish cruelty. Many women in matrimonial disputes refrain from filing criminal complaints due to social pressure, stigma, or with the hope of reconciliation. The personal choice of a woman to avoid criminal litigation cannot be construed as acceptance of cruelty or condonation of ill-treatment. The Honourable Supreme Court and various High Courts have repeatedly held that absence of a complaint under Section 498-A IPC or the Dowry Prohibition Act is not fatal to proving cruelty.

38. The conclusion of the learned Family Court that cruelty cannot be presumed in the absence of a criminal complaint is legally untenable. Matrimonial cruelty is to be adjudicated on evidence adduced by the parties and the absence of criminal proceedings is neither a prerequisite nor determinative. The learned Family Court has wrongly placed reliance on non-filing of a police complaint as a basis to reject the case of the petitioner. Hence, it must be noted that what matters in a family case is the evidence placed before the learned Family Court. Whether an FIR KL, J & VRKR, J FCA _152 & 156_2019 or criminal complaint was filed is not the deciding factor. The Court has to see the conduct of the parties from the material available on record, and the absence of filing of a criminal case does not take away the proof of cruelty. For the above said reasons, the approach of the learned Family Court on this aspect is legally unsustainable.

39. It is further pertinent to note that the learned Family Court was not justified in allowing the counter-claim of respondent for restitution of conjugal rights under Section 9 of the Act. It is the duty of the respondent to prove that the petitioner withdrew from his society without reasonable cause, as such proof is essential for granting a decree for restitution of conjugal rights.

40. Here, it is apt to state that irretrievable breakdown of marriage by itself is not a ground for divorce under the Act. But where marriage is beyond repair on account of bitterness created by the acts of the husband or the wife or of both, the Courts have always taken irretrievable breakdown of marriage as a very weighty circumstance amongst others, necessitating severance of KL, J & VRKR, J FCA _152 & 156_2019 marital tie. A marriage, which is dead for all purposes, cannot be revived by the Court's verdict, if the parties are not willing. This is because marriage involves human sentiments and emotions and if they are dried-up, there is hardly any chance of their springing back to marital life on account of artificial reunion created by the Court's decree. Courts can dissolve a marriage, when the Court is convinced beyond any doubt that there is absolutely no chance of the marriage surviving and it is broken beyond repair.

41. In Naveen Kohli v. Neelu Kohli 3, a three-Judge Bench of the Honourable Apex Court observed as follows:

"72. Once the marriage has broken down beyond repair, it would be unrealistic for the law not to take notice of that fact, and it would be harmful to society and injurious to the interests of the parties. Where there has been a long period of continuous separation, it may fairly be surmised that the matrimonial bond is beyond repair. The marriage becomes a fiction, though supported by a legal tie. By refusing to sever that tie the law in such cases does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties.

73. A law of divorce based mainly on fault is inadequate to deal with a broken marriage. Under the fault theory, guilt has to be proved; divorce courts are presented concrete instances of human behaviour as bring the institution of marriage into disrepute.

(2006) 4 SCC 558 KL, J & VRKR, J FCA _152 & 156_2019

74. We have been principally impressed by the consideration that once the marriage has broken down beyond repair, it would be unrealistic for the law not to take notice of that fact, and it would be harmful to society and injurious to the interests of the parties. Where there has been a long period of continuous separation, it may fairly be surmised that the matrimonial bond is beyond repair. The marriage becomes a fiction, though supported by a legal tie. By refusing to sever that tie the law in such cases do not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties.

75. Public interest demands not only that the married status should, as far as possible, as long as possible, and whenever possible, be maintained, but where a marriage has been wrecked beyond the hope of salvage, public interest lies in the recognition of that fact.

76. Since there is no acceptable way in which a spouse can be compelled to resume life with the consort, nothing is gained by trying to keep the parties tied for ever to a marriage that in fact has ceased to exist."

42. The appellant and the respondent were at loggerheads right from the inception of their marriage. The marriage never took off. Regardless of the subsistence of the marriage for the last twelve years, the couple was unable to patch up their differences. The marriage is virtually shattered and has become a dead wood. The allegations and counter allegations leveled against each other establish that there is no further chance of a rapprochement.

43. Both parties have crossed the point of no return. A workable solution is certainly not possible. Parties cannot at this KL, J & VRKR, J FCA _152 & 156_2019 stage reconcile themselves and live together forgetting their past as a bad dream. As discussed supra, there is strained relation between the parties right from their marriage. The wife is aged about 42 years and husband is aged about 44 years at present. Though their marriage alleged to have been consummated they were not blessed with any children. They are living separately for the past more than 12 years. Thus, there is no possibility of re-union of parties.

44. In the instant case, there is ample ocular and documentary evidence adduced on behalf of the appellant/petitioner/wife demonstrating that she was subjected to cruelty and it fulfils all the requirements under Section 13(1)(ia) of Act, to dissolve the marriage in between the parties. The learned Family Court did not properly consider the evidence on record and arrived at a conclusion. The learned Family Court ought to have granted divorce on the ground of cruelty meted out by the respondent/husband to the appellant/wife.

45. A spouse, who has been subjected to cruelty, cannot, either in law or equity, be compelled to resume cohabitation. Under KL, J & VRKR, J FCA _152 & 156_2019 Section 9 of the Act, the burden lies squarely on the respondent to prove that the petitioner withdrew from his society without reasonable cause. Once cruelty is established on record, reasonable cause stands proved, and the very foundation for the grant of restitution of conjugal rights collapses. The learned Family Court erred in assessing the counter-claim in isolation, without considering the allegations of cruelty. Therefore, the decree of restitution passed by the learned Family Court is wholly untenable and is set aside. Accordingly, the decree for restitution of conjugal rights is unsustainable in law and is hereby set aside.

X. CONCLUSION:

46. In the light of the foregoing discussion, this Court is of the considered view that the petitioner has substantiated her case of matrimonial cruelty. The evidence on record discloses a consistent

pattern of behaviour on the part of the respondent which undermined the dignity, and emotional well-being, of the petitioner within the matrimonial relationship. Such conduct, taken cumulatively, squarely satisfies the requirements of cruelty under Section 13 (1)(ia) of the Hindu Marriage Act, 1955. This Court KL, J & VRKR, J FCA _152 & 156_2019 also finds it necessary to reiterate the settled legal position that matrimonial cruelty is a civil wrong, and it is not required to be proved with the documentary evidence before the learned Family Court. The learned Family Court erred in proceeding on the assumption that a criminal case must necessarily be lodged before cruelty can be accepted in a divorce case. Matrimonial disputes are adjudicated on the basis of evidence adduced before the civil court, and not on the consideration of whether the aggrieved spouse has chosen to initiate a criminal complaint.

47. Insofar as the counter-claim for restitution of conjugal rights is concerned, this Court is of the view that the respondent has failed to establish that the petitioner withdrew from his society without a reasonable excuse. On the contrary, the circumstances brought on record clearly demonstrate that the petitioner was compelled by the conduct of the respondent. Therefore, a decree for restitution of conjugal rights cannot be granted in circumstances, where the obligation to cohabit has been rendered impracticable by the acts of the respondent himself.

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48. So far as, the order of the learned Family Court directing the respondent to return the gold ornaments and the sum of 5,50,000/- to the petitioner is concerned, the same does not warrant interference and is accordingly maintained and stands confirmed, more particularly, when the respondent has not opposed the said relief.

49. Having regard to the pleadings, evidence and the analysis undertaken, this Court is of the considered opinion that the petitioner has successfully established both physical and mental cruelty, as well as irretrievable breakdown of marriage. Since the marriage between the parties has become emotionally dead, totally unworkable, beyond salvage and has broken down irretrievably, as discussed above, it is deemed appropriate to dissolve the marriage between the parties by granting a decree of divorce under Section 13(1) (ia) of the Act. Conversely, the respondent has failed to establish any valid ground for grant of restitution of conjugal rights. Consequently, the decree passed by the learned Family Court allowing the counter-claim under Section 9 of the Act is, unsustainable and liable to be set aside.

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XI. RESULT:

50. For the reasons recorded hereinabove, the appeals are allowed. The common Order and Decree dated 11.05.2019 passed in F.C.O.P No. 1328 of 2015 on the file of Principal Judge, Family Court-cum-Additional Chief Judge, City Civil Court, is hereby set aside. Consequently, F.C.O.P. No.1328 of 2015 filed by the petitioner is allowed and the counter claim filed by the respondent is dismissed. The marriage between the petitioner and respondent solemnized on 13.02.2013 is accordingly dissolved by a decree of divorce under Section 13(1)(ia) of the Hindu marriage Act, 1955. However, the direction directing the respondent to return the gold ornaments and the sum of 5,50,000/- to the petitioner is maintained and stands confirmed. In the circumstances of the case, there shall be no order as to costs.

As a sequel, miscellaneous applications, if any, pending in this Appeal shall also stand closed.

_____ K. LAKSHMAN, J.

_____ VAKITI RAMAKRISHNA REDDY, J.

Date: 10.02.2026 AS